

PC119 **UTT/25/3012/OP – SOUTH WEST OF MOUNTFITCHET HIGH SCHOOL,
FOREST HALL ROAD, STANSTED**

The Principal Planning Officer presented an Outline application for up to 300 dwellings, up to 2000sqm of Class E uses (offices, shop, café, early years nursery, private gym), up to 60 bed care home and village hall with access, landscaping, and associated infrastructure. All matters reserved except access.

He referred Members to the Addendum List in respect of a further objection from Gosling Barn and the Transport Report submitted by Stansted Mountfitchet Parish Council and corrected a typo in para 14.1.15 of his report to refer to “eastern” rather than “western”. He made specific reference to his Planning Assessment and Planning Balance slides. He recommended that the application be approved subject to those items set out in section 17 of the report.

In response to questions from Members, officers:

- Clarified the Land supply issue in that previously published data showed UDC as 4.77 years land supply, whereas the latest data indicated 5.45 years land supply but had yet to be published. This was due “within weeks”.
- Said that, if approved, the S106 would have to go through due process and if the published land supply figure was above 5 years at the time, then the application would have to be brought back before Members.
- Said there had been no negative comments made by Environmental Health in respect of battery storage at the nearby Solar Farm.
- Said that whilst there had been no comments about M11 noise, there would need to be noise assessments made prior to development.
- Said there had been no objections relating to landscape and key views.
- Said that the proposal was in conflict with Core Policy 3 of the Local Plan, being outside of development limits.
- Said that Highways were satisfied with the proposals.
- Said that there had been 3 studies undertaken relating to Green Belt/ Grey Belt and that officers considered this to be Grey Belt.
- Confirmed weightings given in the Planning Balance assessment, particularly the “moderate” allocations of CP2 and CP3.
- Re-iterated that if the application was refused, the Secretary of State would consider whether to “call in” and determine the application at the national level as the application was for in excess of 150 dwellings.

Members discussed:

- The weightings given to the harms and benefits as shown in the Planning Balance. Further consideration indicated that Members felt that harms outweighed benefits.
- Concerns that there had been no overwhelming need demonstrated and benefits were minor and uncertain.
- That this location had been rejected in the “Call for Sites” for the Local Plan and that this was now an unallocated site outside of the Local Plan.
- The loss of buffering for the CPZ at Stansted.
- The 5-year land supply issue.

- Spatial strategy concerns.
- Conflicts with CP2 and CP3 of the Local Plan
- That the application could potentially undermine all Local Plan works.
- Whether the land should be defined as Green Belt or Grey Belt.

Councillor Pavitt proposed refusal of the application on the grounds of:

1. The proposed development, by reason of its location on an unallocated site outside the defined settlement boundary, would conflict with the Council's spatial strategy for the distribution of growth.
The proposal is therefore contrary to Core Policy 2 (Meeting Our Housing Needs) and Core Policy 3 (Settlement Hierarchy) of the Uttlesford Local Plan 2021–2041, which direct development to allocated sites and the most sustainable settlements.

Furthermore, the proposal would constitute unsustainable development when assessed against the National Planning Policy Framework (NPPF), in particular paragraphs 11 and 15, which emphasise a plan-led approach to development and the delivery of housing in appropriate locations. As such, the proposal is not considered to accord with the Development Plan when taken as a whole.

2. The proposed development would constitute inappropriate development within the Green Belt by reason of its scale and nature. It would result in harm to the openness of the Green Belt and conflict with the purposes of including land within it, particularly in terms of encroachment into the countryside. The site is not considered to fall within the definition of Grey Belt and therefore attracts full Green Belt protection.

In the absence of very special circumstances, the identified harm to the Green Belt, by definition and in spatial terms, is not clearly outweighed by other considerations. The proposal is therefore contrary to Core Policy 59 (The Metropolitan Green Belt) of the Uttlesford Local Plan 2021–2041 and the National Planning Policy Framework (NPPF), in particular Section 13, which attaches great weight to the protection of the Green Belt.

This was seconded by Councillor Freeman.

RESOLVED that the Strategic Director of Planning be authorised to refuse permission for the development in accordance with the above motion.

Councillor G Sell, Councillor G Driscoll, Councillor N Church, J Fox, L Channing, M Williams, Councillor C Wilson (East Herts Council), J Kavanagh and Councillor M Caton (Stansted Mountfitchet PC) all spoke against the application.

M Dodd spoke in support in addition to S Vernon-Harcourt and H Short (Applicants).

The meeting adjourned for lunch between 12.20 pm and 1.05 pm, during which time Councillor Pavitt left the meeting.

PC120 UTT/25/3011/OP – LAND WEST OF BIRCHANGER LANE, BIRCHANGER

The Principal Planning Officer presented an Outline application for up to 180 dwellings and access, landscaping and associated infrastructure. All matters reserved except access.

He again referred Members to the Addendum List in respect of a further objection from Gosling Barn and the Transport Report submitted by Stansted Mountfitchet Parish Council. He made specific reference to his Planning Assessment and Planning Balance slides. He recommended that the application be approved subject to the conditions set out in section 17 of the report.

In response to questions from Members, officers:

- Said that the location was outside the settlement limits for Birchanger and had not been part of the Local Plan.
- Said that Highways had made no objections in respect of possible flooding events on Stansted Road and considered general access arrangements to be acceptable.
- Said that the Railton Traffic report had been considered by Essex Highways but that this had not changed previous advice given on 26 May 2026.
- Said that the closure of Top Lane was not included in this application.
- Said that East Herts Council had been consulted.
- Clarified Grey Belt and Green Belt interpretations.
- Said that there was a street lighting Condition included.
- Said there would be a 20% BNG requirement.
- Again, clarified the 5-year land supply considerations as highlighted in the previous application.

Members discussed:

- Flooding concerns and surface water issues causing drainage problems in the area. This could necessitate road closures in the area for up to 2 months. Officers stated that this proposed development would not necessarily make matters worse.
- The weightings given to the harms and benefits as shown in the Planning Balance. Further consideration indicated that Members felt that harms outweighed benefits.
- Conflicts with CP2 and CP3 of the Local Plan.
- Grey Belt and Green Belt definitions.
- A dramatic landscape and visual impact.
- That this was an unallocated site outside of the Local Plan.
- The 5-year land supply issue.
- Spatial concerns.
- The fact that CP19 of the Local Plan had not allocated any housing to Birchanger. This also conflicted with CP59.

Councillor Lemon proposed refusal of the application on the following grounds

1.

The proposed development, by reason of its location on an unallocated site outside the defined settlement boundary, would conflict with the Council's spatial strategy for the distribution of growth.

The proposal is therefore contrary to Core Policy 2 (Meeting Our Housing Needs), Core Policy 3 (Settlement Hierarchy) and Core Policy 19 of the Uttlesford Local Plan 2021–2041, which direct development to allocated sites and the most sustainable settlements.

Furthermore, the proposal would constitute unsustainable development when assessed against the National Planning Policy Framework (NPPF), in particular paragraphs 11 and 5, which emphasise a plan-led approach to development and the delivery of housing in appropriate locations.

As such, the proposal is not considered to accord with the Development Plan when taken as a whole.

2.

The proposed development would constitute inappropriate development within the Green Belt by reason of its scale and nature. It would result in harm to the openness of the Green Belt and conflict with the purposes of including land within it, particularly in terms of encroachment into the countryside. The site is not considered to fully fall within the definition of Grey Belt and therefore attracts full Green Belt protection.

In the absence of very special circumstances, the identified harm to the Green Belt, both by definition and in spatial terms, is not clearly outweighed by other considerations.

The proposal is therefore contrary to Core Policy 59 (The Metropolitan Green Belt) of the Uttlesford Local Plan 2021–2041 and the National Planning Policy Framework (NPPF), in particular Section 13, which attaches great weight to the protection of the Green Belt.

This was seconded by Councillor Freeman.

RESOLVED that the application be refused in line with the proposal above.

L Maddison, B Ross, M Williams, A Crossley, Councillor C Wilson (East Herts Council), I Pinamonti-Hyde and Councillor A Driscoll (Birchanger) all spoke against the application and statement were read out from L Channing and S Taylor.

M Dodd spoke in support, in addition to S Vernon-Harcourt and H Short (Applicants).

